

CHAPTER 7
COMPENSATION

Section 701. Persons eligible for compensation.

(a) General rule.--Except as otherwise provided in this act, the following persons shall be eligible for compensation:

- (1) A direct victim.
- (2) An intervenor.
- (3) A surviving spouse, parent or child of a deceased direct victim or intervenor.
- (4) Any other individual dependent for principal support upon a deceased direct victim or intervenor.
- (5) ((5) deleted by amendment).
- (6) Any person who assumes the obligation or who pays for the crime scene cleanup, funeral or burial expenses incurred as a direct result of the crime.
- (7) Hospitals or other licensed health care providers under section 707(h). ((7) added July 11, 2022, P.L.775, No.77)
- (8) A person eligible for counseling under this chapter. ((8) added July 11, 2022, P.L.775, No.77)

(b) Exception.--A person who is criminally responsible for the crime upon which a claim is based or an accomplice of the person shall not be eligible to receive compensation with respect to the claim. A member of the family of the individual who committed the crime shall not be eligible if the offender is living in the same household as the direct victim and will substantially benefit from the award. The Attorney General may at any time sue the offender or the direct victim, or both, to recover the award if the offender benefits from the award.

(701 amended June 28, 2002, P.L.496, No.85)

Compiler's Note: Section 16 of Act 77 of 2022 provided that the amendment or addition of sections 103, 201(1.1), (4), (5.2), (7), (8), (8.1), (9), (11) and (13), 211, 212(b), (c), (e) and (f), 213(a), (b), (d), (e), (f) and (g), 214(a), (b) and (f), 216(b) and (d), 301(a) and (c), 302(5), (6) and (7), 312(3), 701(a)(7) and (8), 701.1, 702(a) introductory paragraph, (b), (b.1) and (c), 703, 704(b)(1) and (e), 706(a)(1) and (b), 707(a)(3) and (4), (a.1), (a.2), (b)(1), (2), (4) and (4.1), (f)(1), (3) and (4) and (g), 709(a), 901, 1101(b), 1102(a), (b), (c), (d) and (e)(1), 1301(b) and 1304(a) and (b) shall apply to claims where the crime occurred after the effective date of section 16, except for claims for counseling services relating to sexual abuse under section 701.1.

Section 701.1. Counseling services for victims of sexual abuse.

(a) Eligibility.--The Office of Victims' Services shall provide funding for counseling services related to sexual abuse for an individual who is a direct victim of sexual abuse. Payment shall be made directly to the health care provider that provides the services from funding provided for the implementation of this section.

(b) Nonapplicability.--Eligibility shall not be affected by an adverse determination under section 702(b) or 707(a)(3) or (4). Notwithstanding any other provision of this act, a claimant shall not be required to produce evidence other than a verified or sworn statement to be eligible under subsection (a).

(c) Value of services.--The total value of services under subsection (a) shall not exceed:

(1) Five thousand dollars if the individual was, at the time of the abuse, 18 years of age or older.

(2) Ten thousand dollars if the individual was, at the time of the abuse, under 18 years of age.

(701.1 added July 11, 2022, P.L.775, No.77)

Compiler's Note: Section 16 of Act 77 of 2022 provided that the amendment or addition of sections 103, 201(1.1), (4), (5.2), (7), (8), (8.1), (9), (11) and (13), 211, 212(b), (c), (e) and (f), 213(a), (b), (d), (e), (f) and (g), 214(a), (b) and (f), 216(b) and (d), 301(a) and (c), 302(5), (6) and (7), 312(3), 701(a)(7) and (8), 701.1, 702(a) introductory paragraph, (b), (b.1) and (c), 703, 704(b)(1) and (e), 706(a)(1) and (b), 707(a)(3) and (4), (a.1), (a.2), (b)(1), (2), (4) and (4.1), (f)(1), (3) and (4) and (g), 709(a), 901, 1101(b), 1102(a), (b), (c), (d) and (e)(1), 1301(b) and 1304(a) and (b) shall apply to claims where the crime occurred after the effective date of section 16, except for claims for counseling services relating to sexual abuse under section 701.1.

Section 702. Filing of claims for compensation.

(a) General rule.--Except as otherwise provided in this act, a claim for compensation may be filed by an individual eligible for compensation as provided in section 701 or 701.1, or as follows: (Intro. par. amended July 11, 2022, P.L.775, No.77)

(1) If the individual is a minor, the claim may be filed by a parent or guardian. If the parent or guardian of a minor who is eligible for compensation is unavailable or fails to assume financial responsibility for the minor's care, a person who assumes financial responsibility for services eligible for compensation and who is not a provider of services or an insurance company may file a claim on behalf of the minor and may receive compensation for eligible services provided to the minor.

(2) If the individual is mentally incompetent, the claim may be filed by a guardian or legal representative. If the guardian or legal representative of a mentally incompetent individual who is eligible for compensation is unavailable or fails to assume financial responsibility for the individual's care, a person who assumes financial responsibility for services eligible for compensation and who is not a provider of services or an insurance company may file a claim on behalf of the individual and may receive compensation for eligible services provided to the individual.

(b) Time.--

(1) Except as set forth in paragraph (2), a claim must be filed not later than five years after the discovery of the occurrence of the crime upon which the claim is based or not later than five years after the death of the direct victim or intervenor as a result of the crime or the discovery and identification of the body of a murder victim.

(2) Exceptions shall be as follows:

(i) ((i) deleted by amendment).

(i.1) Claims for counseling services related to sexual abuse under section 701.1.

(ii) If a direct victim is under 18 years of age at the time of the occurrence of the crime and the alleged offender is the direct victim's parent or a person responsible for the direct victim's welfare, an individual residing in the same home as the direct victim

or a paramour of the direct victim's parent, all of the following shall apply:

(A) The limitation period under this subsection is tolled until the direct victim reaches 21 years of age.

(B) The limitation period shall run until the later of:

(I) the end of the limitation period for the offense as set forth in 42 Pa.C.S. Ch. 55 Subch. C (relating to criminal proceedings); or

(II) the end of the limitation period under paragraph (1).

(ii.1) If a direct victim is under 18 years of age at the time of the occurrence of the crime and the direct victim is seeking reimbursement for counseling services only, all of the following shall apply:

(A) The limitation period under this subsection is tolled until the direct victim reaches 21 years of age.

(B) The limitation period shall run until the later of:

(I) the end of the limitation period for the offense as set forth in 42 Pa.C.S. Ch. 55 Subch. C; or

(II) the end of the limitation period under paragraph (1).

(iii) ((iii) deleted by amendment).

(iii.1) The Office of Victims' Services may find good cause to accept a claim beyond the limitation period under paragraph (1) if one of the following circumstances existed at the time of the occurrence of the crime or the discovery of the occurrence of the crime:

(A) The direct victim, intervenor or claimant was mentally or physically incapacitated.

(B) The victim was a minor.

(C) There was a fear of retaliation.

(D) The occurrence of the crime was not readily apparent.

(E) Other circumstances when good cause is shown by the claimant.

((b) amended July 11, 2022, P.L.775, No.77)

(b.1) Returned claims.--If a claim has been filed but subsequently returned to the claimant for correction or for additional verification or information, the date the claim was first received by the Office of Victims' Services shall be the permanent filing date for purposes of subsection (b). The correction or additional verification or information must be filed within a period of time established by the Office of Victims' Services. ((b.1) amended July 11, 2022, P.L.775, No.77)

(c) Manner.--Claims must be filed with the Office of Victims' Services in person, by mail or by any electronic means authorized by the Office of Victims' Services. ((c) amended July 11, 2022, P.L.775, No.77)

(702 amended June 28, 2002, P.L.496, No.85)

Compiler's Note: Section 16 of Act 77 of 2022 provided that the amendment or addition of sections 103, 201(1.1), (4), (5.2), (7), (8), (8.1), (9), (11) and (13), 211, 212(b), (c), (e) and (f), 213(a), (b), (d), (e), (f) and (g), 214(a), (b) and (f), 216(b) and (d), 301(a) and (c), 302(5), (6) and (7), 312(3), 701(a)(7) and (8), 701.1, 702(a) introductory paragraph, (b), (b.1) and (c), 703,

704(b)(1) and (e), 706(a)(1) and (b), 707(a)(3) and (4), (a.1), (a.2), (b)(1), (2), (4) and (4.1), (f)(1), (3) and (4) and (g), 709(a), 901, 1101(b), 1102(a), (b), (c), (d) and (e)(1), 1301(b) and 1304(a) and (b) shall apply to claims where the crime occurred after the effective date of section 16, except for claims for counseling services relating to sexual abuse under section 701.1.

Section 703. Minimum allowable claim.

(a) General rule.--Except as set forth in subsection (b), no award shall be made on a claim unless the claimant has incurred an aggregate minimum out-of-pocket loss, loss of earnings or loss of support of \$50.

(b) Exception.--Subsection (a) shall not apply if the direct victim or claimant was 60 years of age or older at the time the crime occurred.

(703 amended July 11, 2022, P.L.775, No.77)

Compiler's Note: Section 16 of Act 77 of 2022 provided that the amendment or addition of sections 103, 201(1.1), (4), (5.2), (7), (8), (8.1), (9), (11) and (13), 211, 212(b), (c), (e) and (f), 213(a), (b), (d), (e), (f) and (g), 214(a), (b) and (f), 216(b) and (d), 301(a) and (c), 302(5), (6) and (7), 312(3), 701(a)(7) and (8), 701.1, 702(a) introductory paragraph, (b), (b.1) and (c), 703, 704(b)(1) and (e), 706(a)(1) and (b), 707(a)(3) and (4), (a.1), (a.2), (b)(1), (2), (4) and (4.1), (f)(1), (3) and (4) and (g), 709(a), 901, 1101(b), 1102(a), (b), (c), (d) and (e)(1), 1301(b) and 1304(a) and (b) shall apply to claims where the crime occurred after the effective date of section 16, except for claims for counseling services relating to sexual abuse under section 701.1.

Section 704. Determination of claims.

(a) Processing.--The Office of Victims' Services shall establish functional procedures for the intake, verification and processing of claims.

(b) Review.--

(1) The Office of Victims' Services shall review the claim and all supporting documents and investigate the validity of the claim. The investigation shall include an examination of police, court and official records and reports concerning the crime and may include an examination of medical and hospital reports relating to the injury upon which the claim is based. The Office of Victims' Services may not request or review counseling notes of mental health service providers. The Office of Victims' Services shall request an assessment from the mental health service provider as to the extent the service provided is needed as a direct result of the crime. ((1) amended July 11, 2022, P.L.775, No.77)

(2) Claims shall be investigated and determined, regardless of whether the alleged criminal has been apprehended, prosecuted or adjudicated for the crime in question.

(c) Determination.--The Office of Victims' Services shall determine whether to grant an award, increase or decrease an award or deny the claim based on the supporting documents, the report of the investigation and staff recommendations. If the Office of Victims' Services is unable to determine if a claim is justified based upon the supporting documents, it may direct a hearing before a hearing examiner designated by the commission. At the hearing, any relevant evidence not legally privileged shall be admissible.

(d) Notice.--The Office of Victims' Services shall promptly notify the claimant of its final decision.

(e) Records.--The Office of Victims' Services shall maintain complete records and histories on all claims filed, supplemental awards paid to claimants, claims status and third-party entitlements and recoveries in accordance with the commission's established records retention schedule. ((e) amended July 11, 2022, P.L.775, No.77)

(704 amended June 28, 2002, P.L.496, No.85)

Compiler's Note: Section 16 of Act 77 of 2022 provided that the amendment or addition of sections 103, 201(1.1), (4), (5.2), (7), (8), (8.1), (9), (11) and (13), 211, 212(b), (c), (e) and (f), 213(a), (b), (d), (e), (f) and (g), 214(a), (b) and (f), 216(b) and (d), 301(a) and (c), 302(5), (6) and (7), 312(3), 701(a)(7) and (8), 701.1, 702(a) introductory paragraph, (b), (b.1) and (c), 703, 704(b)(1) and (e), 706(a)(1) and (b), 707(a)(3) and (4), (a.1), (a.2), (b)(1), (2), (4) and (4.1), (f)(1), (3) and (4) and (g), 709(a), 901, 1101(b), 1102(a), (b), (c), (d) and (e)(1), 1301(b) and 1304(a) and (b) shall apply to claims where the crime occurred after the effective date of section 16, except for claims for counseling services relating to sexual abuse under section 701.1.

Section 705. Judicial review.

Within 30 days after receipt of a copy of the report containing a final decision of the Office of Victims' Services, the claimant may appeal the final decision of the Office of Victims' Services in the manner provided for appeals from administrative agencies as provided in 2 Pa.C.S. Ch. 7 Subch. A (relating to judicial review of Commonwealth agency action).

(705 amended June 28, 2002, P.L.496, No.85)

Section 706. Emergency awards.

(a) Authorization.--Notwithstanding the provisions of sections 704 and 707, if it appears to the Office of Victims' Services that the claim is one with respect to which an award probably will be made and that undue hardship will result to the claimant if immediate payment is not made, the Office of Victims' Services may make an emergency award to the claimant pending a final decision in the case. The following shall apply:

(1) The total amount of the emergency award shall not exceed a rate set by the Office of Victims' Services. ((1) amended July 11, 2022, P.L.775, No.77)

(2) The amount of the emergency award shall be deducted from any final award made to the claimant.

(3) The excess of the amount of the emergency award over the amount of the final award or the full amount of the emergency award if no final award is made shall be repaid by the claimant to the Office of Victims' Services.

(b) Reconsideration.--The Office of Victims' Services may reconsider an emergency award at any time prior to the final decision in the case and increase previous orders for emergency compensation up to the overall limit of a rate set by the Office of Victims' Services. ((b) amended July 11, 2022, P.L.775, No.77)

(c) Compilation.--The Office of Victims' Services shall compute the total number and amount of emergency awards given in each fiscal year for inclusion in the annual report.

(706 amended June 28, 2002, P.L.496, No.85)

Compiler's Note: Section 16 of Act 77 of 2022 provided that the amendment or addition of sections 103, 201(1.1), (4),

(5.2), (7), (8), (8.1), (9), (11) and (13), 211, 212(b), (c), (e) and (f), 213(a), (b), (d), (e), (f) and (g), 214(a), (b) and (f), 216(b) and (d), 301(a) and (c), 302(5), (6) and (7), 312(3), 701(a)(7) and (8), 701.1, 702(a) introductory paragraph, (b), (b.1) and (c), 703, 704(b)(1) and (e), 706(a)(1) and (b), 707(a)(3) and (4), (a.1), (a.2), (b)(1), (2), (4) and (4.1), (f)(1), (3) and (4) and (g), 709(a), 901, 1101(b), 1102(a), (b), (c), (d) and (e)(1), 1301(b) and 1304(a) and (b) shall apply to claims where the crime occurred after the effective date of section 16, except for claims for counseling services relating to sexual abuse under section 701.1.

Section 707. Awards.

(a) Requirements.--No award shall be made unless it is determined by a preponderance of the evidence that:

(1) A crime was committed.

(2) The person injured or killed was a direct victim or intervenor.

(3) The crime was promptly reported to the proper authorities.

(i) ((i) deleted by amendment).

(ii) ((ii) deleted by amendment).

((3) amended July 11, 2022, P.L.775, No.77)

(4) The direct victim, intervenor or claimant has fully cooperated with all law enforcement agencies and the Office of Victims' Services, unless the Office of Victims' Services finds the noncompliance to have been justified consistent with the Office of Victims' Services regulations. The Office of Victims' Services shall ensure that the regulations relating to cooperation with all law enforcement agencies of a direct victim, intervenor or claimant comply with all applicable Federal laws and regulations. ((4) amended July 11, 2022, P.L.775, No.77)

(a.1) Protection from abuse.--A claimant who satisfies the eligibility requirements of subsection (a)(1), (2) and (4) may satisfy the eligibility requirement under subsection (a)(3) for reporting a crime to the proper authorities by commencing an action brought in accordance with 23 Pa.C.S. Ch. 61 (relating to protection from abuse) and as provided for in the Pennsylvania Rules of Civil Procedure. In no case may an award be made if the record shows that the petition was:

(1) Withdrawn, unless the Office of Victims' Services finds the withdrawal to have been justified, consistent with regulations of the Office of Victims' Services.

(2) (Reserved).

(i) ((i) deleted by amendment).

(ii) ((ii) deleted by amendment).

((a.1) amended July 11, 2022, P.L.775, No.77)

(a.2) Sexual violence and intimidation orders.--A claimant who satisfies the eligibility requirements of subsection (a)(1), (2) and (4) may satisfy the eligibility requirement under subsection (a)(3) for reporting a crime to the proper authorities by commencing an action brought in accordance with 42 Pa.C.S. Ch. 62A (relating to protection of victims of sexual violence or intimidation) and as provided for in the Pennsylvania Rules of Civil Procedure. An award may not be made if the record shows that the petition was withdrawn, except if the Office of Victims' Services finds the withdrawal to have been justified, consistent with regulations of the Office of Victims' Services. ((a.2) added July 11, 2022, P.L.775, No.77)

(b) Amount.--

(1) Any award made under this chapter shall be contingent upon funds being available and be in an amount not exceeding out-of-pocket loss, together with loss of past, present or future earnings or support resulting from such injury. In no case shall the total amount of an award exceed \$35,000 except for payment of the following:

(i) counseling, the maximum amount of which shall be in accordance with paragraph (4.1);

(ii) forensic rape examination and medications directly related to the sexual assault or rape, the amount of which shall not exceed \$1,000; or

(iii) reasonable and necessary costs of cleaning the crime scene of a private residence or privately owned motor vehicle, the amount of which shall not exceed \$500.

((1) amended July 11, 2022, P.L.775, No.77)

(2) An award made for loss of earnings or loss of support shall, unless reduced pursuant to other provisions of this chapter, be in an amount equal to the actual loss sustained. The following shall apply:

(i) No such award shall exceed the average weekly wage for all persons covered by the act of December 5, 1936 (2nd Sp.Sess., 1937 P.L.2897, No.1), known as the Unemployment Compensation Law, in this Commonwealth as determined annually by the Department of Labor and Industry for each week of lost earnings or support.

(ii) Except as set forth in subparagraph (iii), the aggregate award for the loss shall not exceed \$15,000.

(iii) In the case of death of a direct victim or intervenor, the aggregate award shall not exceed \$20,000.

((2) amended July 11, 2022, P.L.775, No.77)

(3) If an order of restitution has been entered on behalf of the direct victim, those amounts actually collected shall be applied first to property losses incident to the crime and secondly to personal injury losses as set forth in subsection (f).

(4) An award for counseling performed by or under the supervision of a psychiatrist, psychologist, licensed professional counselor or licensed social worker and reimbursement of associated transportation costs, subject to the provisions of paragraph (4.1), may be made to:

(i) a direct victim;

(ii) an individual responsible for the direct victim's welfare;

(iii) an intervenor or individual who is physically present at the crime scene and witnesses a violent crime;

(iv) in the case of a homicide, an individual who discovers the body;

(v) anyone related to the direct victim within the second degree of consanguinity or affinity;

(vi) anyone maintaining a common-law relationship with the direct victim;

(vii) anyone residing in the same household with the direct victim; or

(viii) anyone engaged to be married to the direct victim.

((4) amended July 11, 2022, P.L.775, No.77)

(4.1) In the case of an award made pursuant to paragraph (4), the following shall apply:

(i) The amount of an award under paragraph (4)(i) shall not exceed \$5,000 where the direct victim is an adult and shall not exceed \$10,000 where the direct victim is a minor. A minor who is a direct victim of a

sexual offense may request that the minor's primary insurance carrier not be billed for counseling services if the policy is held or administered by either the alleged perpetrator of the crime against the direct victim or an individual responsible for the minor's welfare that is not supportive of counseling services.

(ii) The amount of an award under paragraph (4)(ii), (v), (vi), (vii) or (viii) shall not exceed \$2,500 except in the case of a homicide whereby the amount of this award shall not exceed \$5,000.

(iii) The amount of an award under paragraph (4)(iii) or (iv) shall not exceed \$1,500.
((4.1) amended July 11, 2022, P.L.775, No.77)

(5) An award for the reasonable and necessary costs for the replacement of prosthetic devices, wheelchairs, canes, walkers, hearing aids, eyeglasses or other corrective lenses, dental devices or prescription medications damaged or stolen as a result of the crime shall be at a rate set by the Office of Victims' Services. Expenses for prosthetic devices, wheelchairs, canes, walkers, hearing aids, eyeglasses or other corrective lenses, dental devices or prescription medications needed as a result of the crime shall be counted against the \$35,000 award limitation.

(c) Public assistance.--Provisions of awards made pursuant to a statute compensating or benefiting a direct victim or claimant shall in no way affect the claimant's or direct victim's eligibility under public assistance or any other Federal or Commonwealth social benefit or assistance program.

(d) Apportionment.--If there are two or more individuals entitled to an award as a result of the death of a direct victim or intervenor, the award shall be apportioned among the claimants.

(e) Reduction.--Except as otherwise provided in this act, an award made under this chapter shall be reduced by the amount of any payments received or to be received by the claimant as a result of the injury:

(1) from or on behalf of the individual who committed the crime;

(2) under any insurance or health and welfare programs, including those mandated by law;

(3) under any contract of insurance wherein the claimant is the beneficiary;

(4) from public funds;

(5) as an emergency award under section 706;

(6) under any pension program, including those providing for disability or survivor's benefits; or

(7) under a settlement or award made by or on behalf of a party alleged to be responsible in whole or in part for the injury, without regard to the party's criminal culpability.

(f) Direct victim responsibility.--

(1) Except as set forth in paragraphs (2), (3) and (4), in determining the amount of an award, the Office of Victims' Services shall determine whether the direct victim or intervenor, because of conduct, contributed to the infliction of the injury. The Office of Victims' Services may reduce the amount or deny the claim altogether in accordance with the determination. ((1) amended July 11, 2022, P.L.775, No.77)

(2) If the crime involved is rape or sexual assault, the conduct of the direct victim shall not be considered. If the crime involved is related to domestic violence, the

conduct of the direct victim shall not be considered unless the direct victim was the primary aggressor.

(3) If the crime involved is a homicide, the conduct of the direct victim shall not be considered for claims by eligible claimants for counseling and funeral expenses. ((3) amended July 11, 2022, P.L.775, No.77)

(4) The conduct of the direct victim or intervenor shall not be considered for claims by eligible claimants for counseling. ((4) added July 11, 2022, P.L.775, No.77)

(g) Intervenor responsibility.--In determining the amount of an award to an intervenor, the Office of Victims' Services shall consider whether the intervenor, because of conduct, contributed to the infliction of the injury. The Office of Victims' Services may reduce the amount or deny the claim altogether in accordance with the determination. ((g) amended July 11, 2022, P.L.775, No.77)

(h) Forensic rape investigation.--

(1) A hospital or other licensed health care provider may submit a claim for reimbursement for the cost of a forensic rape examination if the cost is not covered by insurance or if the victim requests that the insurance carrier not be billed. Upon filing of a claim, the Office of Victims' Services shall promptly notify the prosecutor of the county where the crime is alleged to have occurred. The reimbursement, where applicable, shall be at a rate set by the Office of Victims' Services.

(2) The cost of a forensic rape examination and the cost of medications prescribed to the direct victim shall not be charged to the victim.

(3) A sexual assault or rape victim need not be an applicant for any other compensation under this chapter. (707 amended June 28, 2002, P.L.496, No.85)

Compiler's Note: Section 16 of Act 77 of 2022 provided that the amendment or addition of sections 103, 201(1.1), (4), (5.2), (7), (8), (8.1), (9), (11) and (13), 211, 212(b), (c), (e) and (f), 213(a), (b), (d), (e), (f) and (g), 214(a), (b) and (f), 216(b) and (d), 301(a) and (c), 302(5), (6) and (7), 312(3), 701(a)(7) and (8), 701.1, 702(a) introductory paragraph, (b), (b.1) and (c), 703, 704(b)(1) and (e), 706(a)(1) and (b), 707(a)(3) and (4), (a.1), (a.2), (b)(1), (2), (4) and (4.1), (f)(1), (3) and (4) and (g), 709(a), 901, 1101(b), 1102(a), (b), (c), (d) and (e)(1), 1301(b) and 1304(a) and (b) shall apply to claims where the crime occurred after the effective date of section 16, except for claims for counseling services relating to sexual abuse under section 701.1.

Section 708. Manner of payment.

(a) Lump sum.--The award shall be paid in a lump sum, except that, in the case of death or protracted disability, the award may provide for periodic payments. No award made under this chapter shall be subject to execution or attachment other than for expenses resulting from the injury which is the basis for the claim. All awards shall be paid by or under the authority of the State Treasurer. An award shall not be considered as compensation taxable as income under Article III of the act of March 4, 1971 (P.L.6, No.2), known as the Tax Reform Code of 1971. The Office of Victims' Services shall reconsider at least annually every award being paid in installments. The Office of Victims' Services may reconsider a claim at any time and modify or rescind previous orders for compensation based upon a change

in financial circumstances of a direct victim or one or more surviving dependents.

(b) Medical expenses.--Medical expenses, except as otherwise provided, shall be paid to a hospital or other licensed health care provider on behalf of the victim at a rate set by the Office of Victims' Services. If the Office of Victims' Services accepts a claim, the hospital or other licensed health care provider shall accept such payment as payment in full and may not attempt to collect from the victim any amount exceeding the amount of reimbursement made by the Office of Victims' Services.

(708 amended June 28, 2002, P.L.496, No.85)

Section 709. Confidentiality of records.

(a) General rule.--All reports, records or other information obtained or produced by the Office of Victims' Services during the processing or investigation of a claim shall be confidential and privileged, shall not be subject to subpoena or discovery, shall be used for no purpose other than the processing of a claim and, except as otherwise provided by law or as provided in this section, shall not be introduced into evidence in any judicial or administrative proceeding. ((a) amended July 11, 2022, P.L.775, No.77)

(b) Disclosure restricted.--Except as otherwise provided by law, no person who has had access to a report, record or any other information under this subsection shall disclose the content of such a report, record or other information or testify in a judicial or administrative proceeding without the written consent of the direct victim or intervenor or, if the direct victim or intervenor is deceased, the claimant.

(c) Construction.--This section shall not be construed to preclude or limit introduction of the contents of a report, record or other information in an appeal hearing before the Office of Victims' Services or in an investigation, prosecution or judicial proceeding enforcing section 1303 or in communicating with the prosecutor's office regarding restitution.

(709 amended June 28, 2002, P.L.496, No.85)

Compiler's Note: Section 16 of Act 77 of 2022 provided that the amendment or addition of sections 103, 201(1.1), (4), (5.2), (7), (8), (8.1), (9), (11) and (13), 211, 212(b), (c), (e) and (f), 213(a), (b), (d), (e), (f) and (g), 214(a), (b) and (f), 216(b) and (d), 301(a) and (c), 302(5), (6) and (7), 312(3), 701(a)(7) and (8), 701.1, 702(a) introductory paragraph, (b), (b.1) and (c), 703, 704(b)(1) and (e), 706(a)(1) and (b), 707(a)(3) and (4), (a.1), (a.2), (b)(1), (2), (4) and (4.1), (f)(1), (3) and (4) and (g), 709(a), 901, 1101(b), 1102(a), (b), (c), (d) and (e)(1), 1301(b) and 1304(a) and (b) shall apply to claims where the crime occurred after the effective date of section 16, except for claims for counseling services relating to sexual abuse under section 701.1.

Section 710. Responsibilities of employers, service providers and insurance companies.

(a) Response.--Employers, insurance companies or providers of services to direct victims, intervenors or claimants, including, but not limited to, doctors, hospitals and counselors, shall respond in writing to the Office of Victims' Services' request for confirmation or other information under this chapter within 30 days of receipt of the Office of Victims' Services' request.

(b) Penalty.--Any person who fails to respond to a request under subsection (a) shall be subject to a penalty of not more than \$50 per day, up to and including the date of compliance.

(c) Enforcement.--The office of the district attorney of the county in which the crime occurred and the Office of Victims' Services shall be charged with enforcement of this section and the collection of penalties, which may be given to local victim service agencies or used for the enforcement and collection of penalties under this section.

(710 amended June 28, 2002, P.L.496, No.85)